



POLICE DEPARTMENT

January 12, 2009

MEMORANDUM FOR: Police Commissioner

Re: Sergeant Israel Sexton
Tax Registry No.924479
Brooklyn Court Section
Disciplinary Case No. 83025/07

The above-named member of the Department appeared before me on September 18, 2008, charged with the following:

1. Said Sergeant Israel Sexton, assigned to the Brooklyn Court Section, while off-duty, on or about January 23, 2007, in Queens County, did fail notify the Police Commissioner and/or the Legal Bureau that he intended to provide character testimony in Queens Supreme Court, and did in fact provide testimony in Queens Supreme Court, without prior permission or notification, as required. (*As Amended*)

PG 211-09 Pages 1, 2, and 3 – COURT AND AGENCY APPEARANCES

The Department was represented by Lisa McFadden, Esq. Department Advocate's Office and the Respondent was represented by Andrew Quinn, Esq.

The Respondent, through his counsel, entered a plea of Not Guilty to the subject charge. A stenographic transcript of the trial record has been prepared and is available for the Police Commissioner's review.

DECISION

The Respondent is found Guilty.

SUMMARY OF EVIDENCE PRESENTED

The Department's Case

Both parties agreed to the following stipulated facts:

1. In January of 2007, Tony Sexton was on trial under Indictment No. 35703 in Supreme Court of New York, County of Queens, Criminal Term Part TAP C. Defendant Sexton was charged with Murder Two, Tampering with Physical Evidence and Criminal Possession of a Firearm. The Assistant District Attorney (ADA) on that case was ADA Brad Leventhal and Defendant Sexton was representing himself;
2. On January 18, 2007, Defendant Sexton informed ADA Leventhal that he would be calling the Respondent to testify as a police expert;
3. The Respondent is the cousin of Defendant Sexton;
4. On January 23, 2007, the Respondent was called in the above-referenced case to testify for Defendant Sexton. A certified transcript of Respondent's complete testimony consisting of 67 pages is admitted into evidence by stipulation;
5. The Respondent was contacted by the defendant's father, Sammy Sexton Sr., a few days prior to January 23, 2007 and was requested to testify on behalf of Defendant Sexton;
6. The Respondent was not subpoenaed to testify on January 23, 2007;
7. The Respondent's understanding was that he was going to be providing, among other things, character testimony on behalf of Defendant Sexton;
8. The Respondent did not request permission or make notification to his commanding officer, the Office of the Police Commissioner, the Legal Bureau, or any other Department representative that he intended to testify on behalf of Defendant Sexton on January 23, 2007;
9. The Respondent did not receive permission from the Office of the Police Commissioner or any other Department representative to testify on January 23, 2007;
10. The Respondent's Patrol Guide (PG) 206-13 statement, consisting of 20 pages, dated March 26, 2007 is admitted into evidence by stipulation.
11. The Respondent did read the provisions of PG 206-13 prior to providing testimony on January 23, 2007.

Official Department Interview of Sergeant Israel Sexton

The interview was conducted by Sergeant Ralph Demoddell of Internal Affairs Bureau (IAB) Group 31 on March 26, 2007. (Department Exhibit (DX 1)). Present at the interview were Sergeant Michael of IAB Group 31 and the Respondent. The official investigation was conducted based on a complaint filed by ADA Brad Leventhal of the Queens District Attorney's office. Leventhal informed the Department that Tony Sexton (hereinafter Sexton) was representing himself in a homicide trial under Indictment No. 00537/2003. Sexton stated that [REDACTED], the Respondent was going to appear in Queens Supreme Court on January 23, 2007 and testify as a police expert. Based on this information, the following misconduct was alleged against the Respondent: Criminal Association with a family member.

The Respondent was informed during his Official Department Interview that he was being interviewed as a subject in this investigation and that he was afforded all the rights guaranteed under the State and Federal Constitution. He was also advised of his responsibility to answer questions related to the performance of his official duties. He was further advised of the rules regarding the making of false statements.

The Respondent stated that he was a sergeant with the Police Department assigned to the Brooklyn Court Section. He stated that in February 2003 he learned that Sexton was arrested. He explained that Sexton is his [REDACTED]. He stated that he learned of the arrest via a telephone call either from Sexton's ex-girlfriend Roseanne or Sexton's brother, Sammy Sexton, Jr., who is a police officer assigned to the 79 Precinct. The Respondent stated that he and Sammy Sexton, Jr. reported to the 103 Precinct where Sexton was being detained to see what was taking place. They spoke to a

detective who informed them that it was believed Sexton was involved in the disappearance of a lady. The Respondent stated that they were allowed to see Sexton who said he was okay and that he had been fed. The Respondent said that Sexton's only complaint was that he was being framed for this homicide.

The Respondent said that prior to him reporting to the station house, he was aware that there was a missing persons report filed regarding a woman named Maria Rodgers. Rodgers was the mother of Sexton's girlfriend Roseanne. The Respondent explained that while detectives were tracking the missing person, they were following leads on Sexton. The night that they believed Rodgers went missing, Sexton had dropped his girlfriend's son off at the Respondent's house to be baby sat. Detectives questioned the Respondent as to whether this transpired; at what time and how did Sexton travel. The Respondent stated that he could not recall if he identified himself as a member of the service when he spoke to the detectives. He recalled that he identified himself as a member of the service when he went to the station house to speak to Sexton.

The Respondent stated that he could not recall if he went to Sexton's arraignment. He recalled that he did go to visit him at Riker's Island once or twice after Sexton failed to make bail. He stated that he went with Sexton's father, his uncle. He also stated that Sexton called his residence and spoke to either him or his wife. The Respondent said that he did testify at court hearings when Sexton was the defendant. He recalled testifying at a hearing shortly after the arrest which he believed to be a preliminary hearing. He also stated that Sexton wanted him to testify as a witness at the criminal trial. The Respondent said that he did not receive a subpoena to testify, but was instead notified by his uncle Sammy Sexton, Sr. to come in and testify. He stated that he could not report on

the first day of trial because he was working, so he reported the next day which was his regular day off. The Respondent stated that he reported in business attire.

The Respondent explained that he was never prepped by anyone about his testimony and he did not know what he would be asked. He stated that he only knew that the ADA was alleging that Sexton never did anything productive with his life and that the Respondent was being called to show that Sexton was trying to do something with his life. The Respondent said he was not a police expert and was not going to testify as a police expert. He said that he was going to testify, more or less as a character witness.

The Respondent stated that since January 23, 2007, he had not seen or heard from Sexton. He said that he had not visited him at a correctional facility since that date. The Respondent said that when he did go to Riker's Island to visit Sexton, he did not notify his commanding officer or any other supervisor about the visit. He also stated that when he went to court to testify, he did not notify his commanding officer or a supervisor either. The Respondent said that he was familiar with the contents of Patrol Guide 211-09 [Appearances by Members of the Service before Governmental Agencies or Private Organizations]. He stated that he did not testify about any police tactics, police policy or any public policy issues at the trial.

Transcript of the Trial Excerpt from The People of the State of New York against Tony Sexton, Defendant, Indictment No. 537-03¹

The ADA was Brad Leventhal and Sexton represented himself. The case was heard on January 23, 2007 before the Honorable Justice Robert J. Hanophy of the Supreme Court of the State of New York, County of Queens. It was held in the Criminal

¹ DX 2.

Term, Part TAP C. Sexton proceeded to call the Respondent as his witness. There was a series of questions posed by Sexton which was objected to as being leading, hearsay or referencing documents not in evidence. Sexton was not able to establish much during his direct and redirect examination of the Respondent. It was established that Sexton held a series of jobs and lived at home with his father. He held a job involving computer resourcing or computer interaction.

During cross-examination, the Respondent acknowledged that around the date of Saturday, February 15, 2003, Sexton dropped off his girlfriend's son Brian at the Respondent's home for a sleepover with his kids. He admitted that Sexton left after he dropped the child off and he had no way of knowing what Sexton did after he left his house. The Respondent stated that Brian stayed at his home until Sexton picked him up the following afternoon.

With regard to Sexton's employment, the Respondent stated that Sexton was an entrepreneur in 2002 and 2003. He explained that he did not work a 9 to 5 job but instead ran a home-based business from his computer. The Respondent acknowledged that one of the last phone calls made to his residence by Sexton was on the morning of February 22, 2003. The Respondent explained that he could not be sure if he spoke to him or his wife did.

The Respondent's Case

The Respondent submitted a legal, letter brief in his defense. The Respondent argued in the legal brief in sum and substance that when he reviewed Patrol Guide (PG) 211-09 extensively, he concluded that it was not applicable to his situation. He also

argued that the section of the guide was poorly drafted and appeared to be contradictory. Specifically the Respondent contended that the "Purpose" section of PG 211-09 required notification to the Police Commissioner when a member of the service intended to give testimony or a written statement relating to the operations or policies of the Department. The Respondent argued that his testimony at his cousin's criminal trial was limited to factual issues regarding contact he had with Sexton at or near the time of Maria Rogers's disappearance. He further argued that not a single question involved Police Department procedure or policy. The Respondent maintained that to require notification to the Department in this instance would require notification to the Department every time a member of the service gave testimony at any proceeding.

The Respondent also argued that PG 211-09 in its "Scope" section requires notification to the Police Commissioner where a member of the service is acting in an official capacity and he was not acting in an official capacity. Specifically the Respondent referred to the section which stated in pertinent part:

This procedure applies to testimony or statements before governmental agencies or private organizations by members of the service acting in an official capacity, who volunteer, are invited, or are subpoenaed to testify or make a statement regarding Department policy or positions on public matters at any public hearing or before a governmental agency, court, investigating body, legislative committee, administrative agency, private organization, etc. AND testimony or statements before any court or governmental agencies by members of the service providing character, opinion or expert testimony, who volunteer, are invited, or are subpoenaed to testify or make a statement. (Emphasis added).

The Respondent contended that the essential issues in the case were that (1) he was not testifying in an official capacity; (2) he was not testifying about departmental policy or positions on public policy; (3) his testimony was not confidential in nature.

The Respondent maintained that PG 211-09 does not apply to the instant matter. He referred to Interim Order No. 16 issued July 19, 2002 which stated in pertinent part:²

As a result of a recent court ruling, the conditions the Department places on speech of members of the service appearing before a governmental agency or private organization when the speech is non-official and not of a confidential nature is being amended. Specifically, the requirement that a member of the service give prior written notice before making an unofficial public statement and then provide a written summary to the Police Commissioner is eliminated.

For the above-mentioned reasons the Respondent believed he did not violate the letter or spirit of the Patrol Guide and should be found Not Guilty in this proceeding.

FINDINGS AND ANALYSIS

The Respondent stands charged with failing to notify the Police Commissioner or the Legal Bureau that he intended to provide character testimony in Queens Supreme Court and did, in fact, provide testimony without prior permission or notification as required. The Respondent is found Guilty as charged.

By all accounts the facts are not in dispute in this matter. The Respondent's cousin was on trial for murder in Queens Criminal Court and asked the Respondent to testify on his behalf. The Respondent, who acknowledged that he reviewed PG 211-09 in its entirety, testified that he did not find a section in the Patrol Guide which would have required him to make a notification to the Police Department prior to him testifying at trial. Thus the Respondent testified at the criminal trial on January 23, 2007 without requesting permission to testify or notifying his commanding officer or any one else at the Police Department of his intention to testify at the criminal trial.

² Respondent's Exhibit (RX) A.

The Assistant Department Advocate contends that PG 211-09 in its entirety is applicable. Specifically the portion of the language under the “Scope” section of the guide which states in pertinent part:

AND testimony or statements before any court or governmental agencies by members of the service providing character, opinion or expert testimony, who volunteer, are invited, or are subpoenaed to testify or make a statement.

The Assistant Department Advocate maintained that since the Respondent knew he would be giving character testimony, he was on notice as per the language of the Patrol Guide that he had a duty to inform the Police Commissioner of his appearance. This Court agrees. The language quoted above specifically refers to the instant matter where a member of the service is planning to testify about character testimony. Even if the Respondent had not planned to testify about character evidence, but was planning to testify as an expert, the same section also governs expert and opinion testimony. The Patrol Guide addresses the Respondent’s situation. It specifically requires a written request/notification to be sent to the Police Commissioner five days before giving testimony or making a statement. Or if the five-day rule cannot be complied with, a telephone call to the Office of the Police Commissioner or the Legal Bureau would suffice.

This Court acknowledges that the Patrol Guide could have been more artfully drafted using more clear and concise language. But the scope section does address members of the service acting in an official capacity as well as those called to give testimony before a court or agency involving character, opinion and expert testimony. With respect to official capacity, the Respondent recognized in his brief that when he took the stand to testify at the criminal trial, although he was in “business attire” or plain

clothes, he identified himself as, "I'm a sergeant with the New York City Police Department and I'm a real estate broker." The Respondent further recognized that although the ADA referred to him as "Mr. Sexton," the presiding judge referred to him as "Sergeant" at the trial. The fact that the Respondent identified himself to the Court as a member of the Police Department now resulted in the Respondent injecting himself in his "official capacity" at the criminal trial. His testimony as a police sergeant would have carried more weight in the court room which is evident by the judge referring to him as "Sergeant." The Respondent never corrected the impression the judge had by stating that he was not testifying as a sergeant or on behalf of the Department. Thus he allowed the impression the judge had to stand that the Respondent was testifying as a member of the Police Department. The act of the Respondent testifying in his official capacity is within the purview of PG 211-09.

The Respondent raised several issues in his defense. (1) He was not testifying in an official capacity; (2) he was not testifying about departmental policy or positions on public policy; (3) his testimony was not confidential in nature; (4) PG 211-09 is not applicable, particularly in light of Interim Order No. 16. This Court has already addressed the issue of the Respondent acting in his official capacity. The Court agrees that the Respondent did not testify about Department policy or positions on public policy and that his testimony was not necessarily confidential in nature. This Court, however, disagrees that PG 211-09 is not applicable.

In arguing that PG 211-09 is not applicable, the Respondent referred to the history of the Patrol Guide section, specifically Interim Order No. 16 issued July 19, 2002. [RX A]. It stated in sum and substance that based on recent court rulings the requirement that

members of the service give prior written notice before making unofficial public statements and then provide a written summary to the Police Commissioner is eliminated. What the Respondent did not take into account is that the Interim Order then went on to spell out the procedure which would be put into place. The original purpose and scope of PG 211-09 remained in full force. The change was that the member of the service no longer had to give written notice for an unofficial public statement followed by a written summary after the testimony was given. (See Respondent's Exhibit A). This Court takes judicial notice of the fact that the Respondent no longer had to fully communicate what his testimony would be about. (See PG 211-09 issued January 1, 2000 and PG 211-09 issued July 18, 2003). Specifically under the "Procedure" portion of PG 211-09 it states in no uncertain terms that where a member of the service intends to testify in an official capacity or provide character opinion or expert testimony, he or she must prepare a written request/notification on typed letterhead to the Police Commissioner. The member must identify himself or herself, date and location of testimony and the type or proceeding. There is no requirement that the substance of the speech be disclosed.

It is also worth noting that in the "Note" section of PG 211-09, it does not apply to members of the service appearing in the normal course of their duties. In this instance, however, the Respondent, a police sergeant was asked to give testimony at a homicide trial. The Respondent argued that his testifying was a private matter and did not relate to Department policy. How the Respondent could review the Patrol Guide and not think the Police Commissioner would want to be notified of this given the specific language contained in PG 211-09 referring to character, expert and opinion testimony is not clear to this Court.

Accordingly, I find the Respondent Guilty as charged.

PENALTY

In order to determine an appropriate penalty, the Respondent's service record was examined. See Matter of Pell v. Board of Education, 34 N.Y.2d 222 (1974). The Respondent was appointed to the Police Department on July 7, 1999. Information from his personnel record that was considered in making this penalty recommendation is contained in the attached confidential memorandum.

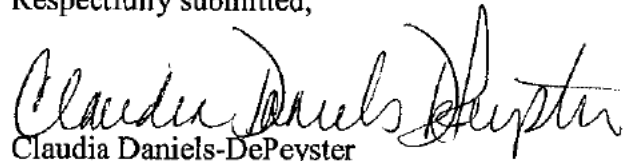
The Respondent has been found Guilty of failing to notify the Police Commissioner and/or the Legal Bureau that he intended to provide character testimony in Queens Supreme Court, and did, in fact, provide testimony without prior permission or notification as required by Patrol Guide 211-09. Although there are no cases precisely on point, there was one case recommended by the Assistant Department Advocate where the Respondent was similarly charged. In Disciplinary Case No. 76913/01, a ten-year member of the Department was found Guilty of failing to receive prior approval from the Police Commissioner before testifying at the criminal trial of her live-in boyfriend. The Respondent in that matter had several other charges involving sick leave violations such that her penalty would not fit this case where the Respondent in this instance is charged with a single specification. It is worth noting, however, that in the cited case, the Respondent gave testimony not related to her official duties as a police officer, but did identify herself as a police officer with the New York City Police Department.

With respect to the penalty, the Assistant Department Advocate could not find a case on point but recommended the following case for guidance. In Disciplinary Case

No. 76959/01, a 15-year member of the Department with no prior disciplinary record forfeited 20 vacation days for using Department letterhead to write a character reference letter for a friend scheduled to be sentenced in a Federal criminal case. The Assistant Department Advocate recommended a penalty in this case of the forfeiture of 15 vacation days. I agree.

Therefore I recommend that the Respondent forfeit 15 vacation days.

Respectfully submitted,



Claudia Daniels-DePeyster
Assistant Deputy Commissioner-Trials

APPROVED



MAR 25 2009
RAYMOND W. KELLY
POLICE COMMISSIONER